



**MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY**

REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/

HEAD OF THE NATIONAL LAND AGENCY

REPUBLIC OF INDONESIA

NUMBER 15 OF 2021

ABOUT

COORDINATION OF SPATIAL PLANNING IMPLEMENTATION

BY THE GRACE OF GOD ALMIGHTY

MINISTER OF AGRARIAN AND SPATIAL PLANNING/

HEAD OF THE NATIONAL LAND AGENCY

REPUBLIC OF INDONESIA,

Considering: a. that in order to implement the provisions of Article 227 paragraph (4) and Article 239 of Government Regulation Number 21 2021 concerning the Implementation of Arrangement Space, it is necessary to establish a Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency concerning Coordination of Spatial Planning Implementation;

Remembering: 1. Article 17 paragraph (3) of the State Constitution

Republic of Indonesia 1945;

2. Law Number 26 of 2007 concerning Regional Regulation

Space (State Gazette of the Republic of Indonesia Year

2007 Number 68, Supplement to the State Gazette of the Republic of Indonesia

Indonesia Number 4725);

3. Law Number 39 of 2008 concerning

Ministry of State (State Gazette of the Republic

Indonesia 2008 Number 166, Additional Sheet

Republic of Indonesia Number 4916);

4. Law Number 11 of 2020 concerning Job Creation (State Gazette of the Republic of Indonesia 2020)
Number 245, Supplement to the State Gazette of the Republic of Indonesia
Indonesia Number 6573);
5. Government Regulation Number 21 of 2021 concerning
Implementation of Spatial Planning (State Gazette
Republic of Indonesia 2021 Number 31, Supplement
State Gazette of the Republic of Indonesia Number 6633);
6. Presidential Regulation Number 47 of 2020 concerning the Ministry
of Agrarian Affairs and Spatial Planning (State Gazette of the
Republic of Indonesia 2020 Number 83);
7. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the Agency
National Land Law Number 16 of 2020 concerning
Organization and Work Procedures of the Ministry of Agrarian Affairs and Spatial Planning
National Land Agency (State Gazette)
Republic of Indonesia 2020 Number 985);

DECIDE:

To stipulate: REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY REGARDING
COORDINATION OF SPATIAL PLANNING IMPLEMENTATION.

PIG

GENERAL REQUIREMENTS

article 1

In this Ministerial Regulation, the following terms are defined as:

1. Spatial Planning, hereinafter abbreviated as RTR
is the result of spatial planning.
2. Detailed Spatial Planning Plan, hereinafter abbreviated as
RDTR is a detailed plan regarding spatial planning.
district/city area space equipped with district/city zoning regulations.
3. Spatial planning is a process system
Spatial Planning, Space Utilization, and
Control of Space Utilization.

4. The implementation of spatial planning is an activity that includes the arrangement, guidance, implementation, and Spatial Planning Supervision.
5. Conformity of Space Utilization Activities
hereinafter abbreviated as KKPR is the suitability between spatial utilization activity plan with RTR.
6. Approval of Suitability of Space Utilization Activities
which is hereinafter abbreviated as PKKPR is a document that stating the suitability between the spatial utilization activity plan and the RTR in addition to the RDTR.
7. The Central Government is the President of the Republic of Indonesia who holds the power of state government
Republic of Indonesia assisted by the Vice President and ministers as referred to in the Law
The 1945 Constitution of the Republic of Indonesia.
8. The Regional Government is the regional head as an element of the regional government administration which leads the implementation of government affairs which are
autonomous regional authority.
9. Society is individuals, groups of people
including customary law communities, corporations, and/or other non-governmental stakeholders in
Implementation of Spatial Planning.
10. The Spatial Planning Forum is a forum at the central level and regions tasked with assisting the Government
Central and Regional Governments by providing considerations in the implementation of spatial planning.
11. The Minister is the Minister who organizes government affairs.
government in the field of Spatial Planning.
12. Director General of Spatial Planning, hereinafter referred to as
The Director General is a high-ranking official who organizes the formulation and implementation of policies in the field of spatial planning and
utilization of spatial planning at the Ministry of Agrarian Affairs and Spatial Planning/National Land Agency.

13. Professional Association is the Association of Planning Experts

Indonesia (IAP) or the planning professional association
other regions and cities formed in accordance with
provisions of laws and regulations.

14. The Academic Association is the Association of Planning Schools

Indonesia (ASPI) or the association of planning academics
other regions and cities formed in accordance with
provisions of laws and regulations.

Article 2

The scope of this Ministerial Regulation includes:

- a. coordination of the implementation of spatial planning; and
- b. Spatial Planning Forum.

CHAPTER II

COORDINATION OF SPATIAL PLANNING IMPLEMENTATION

Part One

General

Article 3

- (1) The implementation of spatial planning is carried out
by combining various interests of a nature
cross-sector, cross-region, and cross-stakeholder
interest.
- (2) In the combination of various interests as
referred to in paragraph (1) requires strengthening of the function
coordination as an effort to improve work
The same inter-stakeholder interest in
Implementation of Spatial Planning.
- (3) Coordination of the Implementation of Spatial Planning is carried
out through coordination within one administrative area,
coordination between regions, and coordination between levels.
government.
- (4) Minister, governor, regent or mayor
carry out coordination functions in accordance with
his authority.

Part Two

Types and Mechanisms of Coordination

Article 4

- (1) Coordination within one administrative area is coordination between agencies in each region administration.
- (2) Inter-regional coordination is coordination that implemented by more than one provincial area or district/city.
- (3) Coordination between levels of government is coordination between the Central Government and the Regional Government Regions and between the provincial and regional governments District/city regional government.

Article 5

- (1) The Minister carries out the coordination function as referred to in Article 4 paragraph (3) through meetings. coordination in the implementation of spatial planning.
- (2) The governor, regent or mayor carries out the functions coordination through the Spatial Planning Forum and implementation of coordination meetings.
- (3) In carrying out the coordination function as referred to in paragraph (1), the Minister may involve Provincial, district or city Spatial Planning Forum, Professional Associations, Academic Associations, and/or figures Public.
- (4) Implementation of the coordination meeting as referred to in paragraphs (1) and paragraphs (2) are implemented for formulate input and considerations in implementation of spatial planning.
- (5) The coordination meeting as referred to in paragraph (1) and paragraph (2) shall be carried out in accordance with the provisions legislation.

CHAPTER III

SPATIAL PLANNING FORUM

Part One

General

Article 6

- (1) In the context of the Implementation of Spatial Planning participatory, the Minister can form a Village Planning Forum Room.
- (2) The implementation of the Spatial Planning Forum at the center is carried out in the event that the Minister requires related considerations implementation of Spatial Planning at the center.
- (3) Implementation of the Spatial Planning Forum at the center as referred to in paragraph (2) in the form of a meeting coordination led by the Minister, Director General and/or officials who are given a mandate and may involve related elements in accordance with the material under consideration. needed.
- (4) The Minister delegates the formation of the Arrangement Forum Space in the regions for governors, district heads and mayors in accordance with his authority.

Article 7

Regional Spatial Planning Forum based on region
the work consists of:

- a. Provincial Spatial Planning Forum; and
- b. District/city Spatial Planning Forum.

Part Two

Formation

Article 8

- (1) The provincial Spatial Planning Forum as referred to in referred to in Article 7 letter a in the province determined by the governor's decision.

(2) Forum Arrangement Room district/city
as referred to in Article 7 letter b in
district is determined by the decision of the regent/mayor
city.

Article 9

Governors, district heads and mayors report on performance
Regional Spatial Planning Forum periodically to
Minister.

Part Three
Membership

Paragraph 1
General

Article 10

Members of the Spatial Planning Forum in the region consist of
vertical land agencies, regional apparatus,
Professional Associations, Academic Associations, and figures
Public.

Article 11

- (1) Members of the Spatial Planning Forum in the region who come from
vertical agencies in the land and
regional apparatus is *ex-officio*.
- (2) Members of the Spatial Planning Forum in the area
comes from the Professional Association appointed by the chairman
Professional Association at the request of the governor, regent,
or mayor.
- (3) Members of the Spatial Planning Forum in the region who come
from the Academic Association are appointed by the chairperson.
Association of Academics at the request of the governor,
regent, or mayor.
- (4) Members of the Spatial Planning Forum in the area
comes from community figures appointed by
governor, regent, or mayor.

Article 12

Members of the Spatial Planning Forum in the region who come from
from elements of Professional Associations, Academic Associations, and figures

The community at least has an understanding of:

- a. local development conditions and problems;
- b. local area development potential; and
- c. social and cultural conditions of the local community.

Article 13

(1) Membership of the Regional Spatial Planning Forum for
representatives of Professional Associations, Academic Associations, and
Public figure ends if:

- a. died;
- b. resign; or
- c. his membership was revoked.

(2) Members of the Spatial Planning Forum in the region from the elements
Professional Association, Academic Association, or figure

People who did not attend the Planning Forum meeting

Space in the area without reason for 3 (three) times

in a row so it's seen as annoying

the performance of the Spatial Planning Forum in the region can

proposed to be replaced based on the results of the meeting

Regional Spatial Planning Forum.

(3) Replacement of members of the Spatial Planning Forum in the
region based on the provisions in paragraph (1) and paragraph (2)

(2) follow the procedures as set out in

Article 11 paragraph (2), paragraph (3), and paragraph (4).

Article 14

In the event that there is no Professional Association, and/or

Association of Academics in the region, member of the Arrangement Forum

Space in the region can come from Professional Associations and/or

Academic Associations from other regions.

Paragraph 2

Organizational Structure of the Spatial Planning Forum

Article 15

- (1) Organizational structure of the Spatial Planning Forum in the region consists of:
 - a. chairman and member;
 - b. Deputy chairman and member;
 - c. secretary and member; and
 - d. members.
- (2) In carrying out its duties, the Arrangement Forum
The regional space is assisted by the Forum secretariat.
Spatial planning in the region.
- (3) In the case of the Spatial Planning Forum in the region
requires a more in-depth study
with the problem of Spatial Planning Implementation, the Spatial
Planning Forum in the region can form a working group.

Article 16

- (1) Membership of the Spatial Planning Forum in the region
valid for 5 (five) years from stipulation and
evaluation can be carried out at any time.
- (2) The results of the evaluation of members of the Spatial Planning
Forum in the region can be used as a basis for determining or
replacement of membership of the Spatial Planning Forum in
area.

Article 17

- (1) The Chair of the Provincial Spatial Planning Forum as referred to in
referred to in Article 7 letter a is held by
provincial regional secretary.
- (2) The deputy chair of the provincial Spatial Planning Forum as
referred to in Article 7 letter a is held by
by representatives of Professional Associations or Associations
Academics.

- (3) The Secretary of the provincial Spatial Planning Forum as referred to in Article 7 letter a is held by _____ by _____ head _____ device _____ area _____ Which _____ organize affairs in the field of spatial planning.
- (4) Members of the Provincial Spatial Planning Forum as referred to in Article 7 letter a consists of _____ from vertical agencies in the land sector and elements regional devices which include:
- a. head of the regional apparatus that organizes government affairs in the maritime sector;
 - b. head of regional apparatus who organizes government affairs in the field of planning regional development;
 - c. head of regional apparatus who organizes government affairs in the field of employment general;
 - d. head of regional apparatus who organizes government affairs in the energy and energy sector mineral resources;
 - e. head of regional apparatus that organizes government affairs in the agricultural sector;
 - f. head of regional apparatus who organizes government affairs in the forestry sector;
 - g. head of regional apparatus who organizes government affairs in the environmental sector live; and
 - h. Head of the Regional Office of the Land Agency National.
- (5) Number of members representing the Association elements Professions, Academic Associations, and Community Figures each numbering 1 (one) person.

Article 18

- (1) Chair of the Regency/City Spatial Planning Forum as referred to in Article 7 letter b is held by the district/city regional secretary.

- (2) The deputy chair of the district/city Spatial Planning Forum as referred to in Article 7 letter b is held by
by representatives of Professional Associations or Associations Academics.
- (3) Secretary of the Regency/City Spatial Planning Forum as referred to in Article 7 letter b is held
by head device area Which
organize affairs in the field of spatial planning.
- (4) Members of the district/city Spatial Planning Forum as referred to in Article 7 letter b consist of vertical agencies in the land sector and elements
regional devices which include:
- a. head of the regional apparatus that organizes
government affairs in the field of planning
regional development;
 - b. head of regional apparatus who organizes government affairs
in the field of work
general;
 - c. head of regional apparatus who organizes
government affairs in the field of energy and
mineral resources;
 - d. head of regional apparatus who organizes
government affairs in the agricultural sector;
 - e. head of regional apparatus that organizes
government affairs in the forestry sector;
 - f. head of regional apparatus who organizes
government affairs in the environmental sector
live; and
 - g. head of the land office.
- (5) Number of members representing the Association elements
Professions, Academic Associations, and Community Figures
each numbering 1 (one) person.

Article 19

In terms of provincial regional apparatus organizations,
district or city that organizes affairs in
the field of spatial planning is a single entity with
public works sector then:

- a. Secretary of the Spatial Planning Forum in the region is held
by head device area Which
carry out government affairs in the field of
public works and spatial planning; and
- b. Members of the Spatial Planning Forum in the region who come from
regional apparatus elements
carry out government affairs in the field of
public works were abolished.

Article 20

- (1) The secretariat of the Spatial Planning Forum in the region is ex-
officio carried out by regional apparatus that carry out government
affairs in the field of
Spatial planning.
- (2) Formation, organizational structure, personnel, and
working procedures of the Spatial Planning Forum Secretariat in
The area is further regulated by the chairman of the Regional Development Planning Forum
Space in the area.

Article 21

- (1) Members of the working group as referred to
in Article 15 paragraph (3) is determined by decision
Chairman of the Regional Spatial Planning Forum.
- (2) The members of the working group consist of:
 - a. members of the Spatial Planning Forum in the area
considered to have competencies related to
the substance discussed in the working group;
 - b. other professional associations related to Spatial Planning
and other academic associations related to the Arrangement
Space that is seen as having competence
related to the substance discussed in
working group; and/or

- c. other regional apparatus elements deemed necessary in relation to the substance being discussed in work groups.
- (3) Working group members who come from associations other professions appointed by the chairman/leader other professional associations at the request of the Forum chairman Spatial planning in the region.
- (4) Working group members who come from associations other academics appointed by the leaders of other academic associations or leaders of higher education institutions at the request of the chairman of the Forum Spatial planning in the region.
- (5) The assignment period of the working group members is stated ends after the study results are discussed and accepted by the Spatial Planning Forum in the region.

Article 22

- (1) Other professional associations and academic associations others as referred to in Article 21 paragraph (3) and paragraph (4) are related associations Spatial Planning field.
- (2) Other professional associations and academic associations others related to the field of spatial planning as referred to in paragraph (1) may originate from the following scientific fields:
 - a. architect;
 - b. civil engineering; and/or
 - c. other related scientific fields.
- (3) Other professional associations and academic associations others as referred to in paragraph (1) in the form of a legal entity based on regulations legislation.

Part Four Duties of the Spatial Planning Forum

Paragraph 1 General

Article 23

- (1) The Regional Spatial Planning Forum is tasked with
provide considerations to governors, district heads or mayors in
the implementation of spatial planning in their areas.
- (2) Considerations as referred to in paragraph (1)
given based on the request of the governor,
regent, or mayor.
- (3) The Spatial Planning Forum in the region can provide
considerations based on one's own initiative in terms of
implementing spatial planning are considered to have the potential
give rise to:
 - a. social vulnerability;
 - b. security disturbances;
 - c. environmental damage; and/or
 - d. disruption to the function of national vital objects.

Paragraph 2 Duties of the Provincial Spatial Planning Forum

Article 24

The provincial Spatial Planning Forum has duties in the following aspects:

- a. spatial planning;
- b. utilization of space; and
- c. control of space utilization.

Article 25

Duties of the provincial Spatial Planning Forum in planning
spatial planning as referred to in Article 24 letter a
includes:

- a. provide considerations for the preparation of provincial RTR;

- b. provide recommendations for adjusting the integration of technical material in the content of coastal waters regulations in provincial spatial planning; and
- c. provide consideration for strengthening the role of society in the preparation of the provincial RTR through implementation of public opinion gathering, discussion forums, and public consultations that include some or all of representing the conditions of the entire province.

Article 26

The duties of the provincial Spatial Planning Forum in utilization space as referred to in Article 24 letter b includes:

- a. give consideration handling And solving problems in implementation programs and activities for the utilization of space in provincial areas, and in district/city areas if necessary;
- b. provide considerations for the implementation of synchronization space utilization program by aligning main program indications with sectoral programs and territoriality;
- c. carry out studies in the framework of the PKKPR assessment for business activities and non-business activities is the authority of the provincial government;
- d. conducting discussions on study results, considerations land technical and/or other considerations required; and
- e. convey the results of the discussion as referred to in letter d to the governor.

Article 27

The duties of the provincial Spatial Planning Forum in controlling utilization of space as referred to in Article 24 letter c includes:

- a. provide considerations for the implementation of control utilization of space and supervision of space, both in national and regional levels, and provide directions and suggestions for solutions;
- b. provide considerations for dispute resolution Spatial planning as a result of differences inter-government agency regulatory policies in 1 (one) province; and
- c. provide considerations for dispute resolution Spatial planning as a result of differences inter-Regional Government regulatory policies districts/cities in 1 (one) province.

Paragraph 3

Duties of the Regency/City Spatial Planning Forum

Article 28

The Regency/City Spatial Planning Forum has the task of aspect:

- a. spatial planning;
- b. utilization of space; and
- c. control of space utilization.

Article 29

Duties of the Regency/City Spatial Planning Forum in spatial planning as referred to in Article 28 letters a include:

- a. provide recommendations in the event of any the need to conduct a review regulations of district/city heads regarding RDTR caused by:
 - 1. changes and determination of national policies which are strategic in nature in regulations legislation;
 - 2. Object development and construction plans national vital; and/or
 - 3. The location borders the district/city in surrounding area.

- b. provide considerations for the preparation of RTR district/city; and
- c. provide consideration for the involvement of the role of the community in the preparation of the RTR for district/city areas through implementation of public opinion gathering, discussion forums, and public consultations that include or represent conditions throughout the district/city area.

Article 30

Duties of the Regency/City Spatial Planning Forum in utilization of space as referred to in Article 28 letter b includes:

- a. give consideration handling And solving problems in implementation space utilization programs and activities in district/city if necessary;
- b. provide considerations for the implementation of synchronization of space utilization programs by aligning main program indications with sectoral programs and territoriality;
- c. carry out studies in the framework of the PKKPR assessment for business activities and non-business activities becomes the authority of the district/city government;
- d. conducting discussions on the results of studies, technical land considerations and/or other considerations required; and
- e. convey the results of the discussion as referred to in letter d to the regent or mayor.

Article 31

Duties of the Regency/City Spatial Planning Forum in control of spatial utilization as referred to in Article 28 letter c includes:

- a. provide considerations for determining the form and mechanism for providing incentives and disincentives in implementation utilization room area district/city;

- b. provide considerations for dispute resolution
Spatial planning as a result of differences
inter-government agency regulatory policies in 1
(one) district/city; and
- c. provide considerations for determining sanction measures
for violations of the use of space and/or
damage to environmental functions.

Part Five

Working procedure

Article 32

- (1) The Spatial Planning Forum in the region carries out
at least regular coordination meetings
1 (one) time in 6 (six) months.
- (2) The coordination meeting as referred to in paragraph
(1) can be implemented on the initiative of the Planning Forum
Space in the region or at the request of the governor,
regent, or guardian city according to
his authority.
- (3) The coordination meeting as referred to in paragraph
(1) led by the chairman of the Spatial Planning Forum in
area.

Article 33

- (1) Formulation of considerations of the Spatial Planning Forum in
areas are decided through deliberation.
- (2) In the case of deliberation as referred to in
(1) if no agreement is reached, the Arrangement Forum
Space in the area conveys alternatives
considerations for the implementation of spatial planning
has been discussed with the governor, regent, or mayor
city as a consideration in decision making
decision.
- (3) Submission alternative consideration
Implementation of Spatial Planning as
referred to in paragraph (2) above, accompanied by minutes
discussion by the Spatial Planning Forum in the region.

Article 34

Decision making based on deliberation for
consensus as referred to in Article 33 paragraph (1)
done after all members have been given the opportunity
to express opinions and suggestions, and
deemed sufficient to be accepted by the meeting as
Contribute opinions and thoughts for solutions
the problem being discussed.

Article 35

- (1) The presence of members from government elements in
coordination meeting of the Regional Spatial Planning Forum
can be delegated to other officials.
- (2) Delegation to other officials as
referred to in paragraph (1) accompanied by the granting of a mandate
to express opinions and suggestions and make decisions.

Article 36

- (1) Input and considerations from the Spatial Planning Forum
in the region is handed over to the governor, and/or
mayor in writing.
- (2) The governor, regent and/or mayor may
make different decisions with
recommendations of the Spatial Planning Forum in the area
accompanied by an explanation of the decision.

Part Six

Funding

Article 37

All costs for carrying out the duties of the Arrangement Forum
Space in the area as regulated in the Regulations
This minister is charged with the revenue and budget
regional spending and other sources of financing
its nature is not binding in accordance with the provisions
legislation.

CHAPTER IV

TRANSITIONAL PROVISIONS

Article 38

- (1) When this Ministerial Regulation comes into effect, the team coordination of regional spatial planning that was formed by the governor, regent, or permanent mayor carry out its duties, functions and authorities until the membership of the Spatial Planning Forum in the region is formed and determined in accordance with provisions of this Ministerial Regulation.
- (2) Spatial Planning Forums in the regions are formed and determined no later than 12 (twelve) months from the enactment of this Ministerial Regulation.

CHAPTER V

CLOSING

Article 39

This Ministerial Regulation comes into force on the date enacted.

So that everyone knows, ordering the promulgation of this Ministerial
Regulation by placing it
in the State Gazette of the Republic of Indonesia.

Established in Jakarta
on March 31, 2021

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Signed.

SOFYAN A. DJALIL

Promulgated in Jakarta on
April 1, 2021

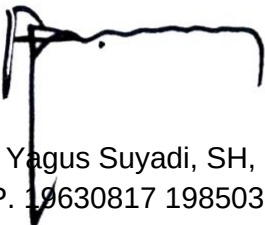
DIRECTOR GENERAL
LEGISLATION
MINISTRY OF LAW AND HUMAN RIGHTS
REPUBLIC OF INDONESIA

Signed.

WIDODO EKATJAHJANA

STATE GAZETTE OF THE REPUBLIC OF INDONESIA 2021 NUMBER 327

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Head of Legal Bureau,



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